

Dharmveer Singh v. State of U.P.

Allahabad High Court · Division Bench · 4 February 2025 · 2025:AHC:15476-DB · WRIT - C No. - 2839 of 2025 · **Writ disposed of; petitioner directed to apply under clause 6.5; recovery stayed two months.**

HEADNOTE

A consumer alleging that his 2004 connection had been permanently disconnected in 2010, and seeking to restrain coercive action on a 12.12.2024 tehsildar recovery citation and to have the connection status updated, was directed to apply under clause 6.5 of the U.P. Electricity Supply Code, 2005. The department was to decide the application within a month. Recovery was stayed for two months or until that decision, whichever was earlier. The writ was disposed of without deciding the merits.

FACTUAL SUMMARY

The petitioner took electricity connection no. 012892 in 2004. He alleged it was permanently disconnected in 2010 and that he thereafter deposited nothing with the Electricity Department. On 12.12.2024 the Tehsildar, Sadabad, District Hathras issued a recovery citation. Invoking Article 226, he sought a mandamus restraining coercive action on that citation and directing the respondents to correct and update the connection's status. Department counsel submitted that the permanent-disconnection receipt would have to be verified before a correct bill could be issued.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

grievance-redressal

HOLDING

Where a consumer disputes a tehsildar recovery citation and seeks correction of the recorded status of a connection alleged to have been permanently disconnected, the Court, without deciding the merits, directed him to apply under clause 6.5 of the U.P. Electricity Supply Code, 2005; the Electricity Department to decide that application within a month; and stayed recovery for two months or until the application is decided, whichever is earlier. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CONNECTION NO. 012892 WAS PERMANENTLY DISCONNECTED IN 2010 AND WHETHER ANY AMOUNT IS RECOVERABLE ON THE 12.12.2024 CITATION

Left to be decided on the petitioner's clause 6.5 application. ¶ 5